

CHAPTER 15.

Licensing Planning (Temporary Provisions) Act, 1945.

ARRANGEMENT OF SECTIONS.

Section.

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An Act to make temporary provision as to justices,
licences in war-damaged areas and certain areas
related to war-damaged areas. [28th March 1945]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Licensing
planning
areas.

1. If, with respect to an area consisting of a licensing district the whole or any part of which has sustained extensive war damage, or consisting of two or more contiguous licensing districts the whole or any part of each of which has sustained extensive war damage, the Secretary of State is satisfied that by reason of the occurrence of the damage or the consequences thereof, including redevelopment which has taken place or is likely to take place in the area, it is desirable to bring into operation the provisions of this Act relating to licensing planning areas, he may, after consultation with the licensing justices for the district or districts and any local planning authority having jurisdiction in the area, by order declare that area to be a licensing planning area for the purposes of this Act.

Licensing
planning
committees.

2.—(1) For every licensing planning area there shall be a licensing planning committee consisting of—

- (a) a chairman appointed by the Secretary of State;
- (b) members appointed from amongst their number by licensing justices having jurisdiction in the area;
- (c) members appointed by local planning authorities having jurisdiction in the area.

(2) The members of any such committee appointed under paragraphs (b) and (c) of the preceding subsection shall be equal in number, but save as aforesaid the number of members of any such committee shall be determined by the order constituting the area, and, where there is more than one body of licensing justices or more than one local planning authority having jurisdiction in the area, the order shall specify the number of members that are to be appointed by each body of justices or local planning authority.

(3) The appointment of a member of any such committee shall be for such term as may be determined by the Secretary of State at the time of his appointment and shall be subject to such conditions as may be so determined.

(4) In the event of an equality of votes on any question, the chairman shall have a casting vote, but save as aforesaid the chairman shall not have a vote.

(5) The proceedings of any such committee shall not be invalidated by reason of any vacancy therein or of any defect in the appointment of a member thereof.

(6) The clerk of the licensing justices for the licensing district constituting the area, or, where the area includes more than one licensing district, the clerk of the licensing justices for such one of those licensing districts as may be specified in the order, shall, by virtue of his office, be the secretary of the committee, and the committee may pay to him such remuneration as may be approved by the Secretary of State.

(7) The committee, in such circumstances as may be approved by the Secretary of State, may defray expenses incurred in travelling by members or the secretary of the committee.

(8) Any expenses properly incurred by the committee in connection with their business shall be defrayed by the local planning authority having jurisdiction in the area, or, where there are two or more such authorities, by those authorities in such proportions as the Secretary of State may direct.

3.—(1) The Secretary of State may, on the application of the licensing planning committee for any licensing planning area, Variation and abolition of licensing planning areas and after such consultation with other authorities as he may think desirable, by order include in the area any licensing district (whether contiguous or not) to which, or to any part of which, there has been, or is in his opinion likely to be, a substantial transfer of population, of industry or of other activities from the districts theretofore included in the area.

(2) The Secretary of State may, after consultation with the licensing planning committee for any licensing planning area, by order exclude from the area any licensing district theretofore included therein.

(3) An order under either of the two preceding subsections may make any such variation of any of the provisions of the original order constituting the area as appears to the Secretary of State to be necessary or expedient in consequence of the inclusion or exclusion of the district.

(4) If it appears to the Secretary of State that it is no longer necessary or expedient that an area should be a licensing planning area, he may, after consultation with the licensing planning committee for the area, by order revoke the order declaring it to be such an area.

General
duties of
licensing
planning
committees.

4.—(1) It shall be the duty of every licensing planning committee to review the circumstances of their area and to endeavour to secure, after such consultation and negotiation as they may think desirable and by the exercise of the powers conferred on them by this Act, that the number, nature and distribution of the licensed premises in the area, the accommodation provided thereat and the facilities given thereat for obtaining food, accord with local requirements, regard being had in particular to any redevelopment or proposed redevelopment of the area.

(2) A licensing planning committee shall comply with such general or special directions as may from time to time be given to them by the Secretary of State as to consultation with such authorities or bodies as may be specified in the directions.

Submission
and approval
of proposals
by licensing
planning
committees.

5.—(1) The licensing planning committee for any area may, from time to time,—

(a) formulate proposals for the removals, hereafter in this Act referred to as “ planning removals ”, that is to say, for the removal, subject to and in accordance with the provisions of this Act relating to removals and subject to such conditions, if any, as may be specified in the proposals, of licences from premises in the area to other specified premises therein or to premises on specified sites therein; and

(b) formulate, with the agreement thereto of the persons interested in the premises in question, proposals for the surrender, subject to such conditions, if any, as may be specified in the proposals, of existing licences in respect of premises in the area,

and shall submit any such proposals to the Minister, together with such plans and other matter explanatory of the nature and effect of the proposals as may be prescribed or as the Minister may, in any particular case, require.

(2) Where a licensing planning committee have so submitted proposals to the Minister, the committee shall publish in the prescribed manner a notice that they have submitted the proposals, naming a place at which copies thereof and of the plans and explanatory matter submitted to the Minister may be seen

at all reasonable hours, and stating the time within which and the manner in which objections to the proposals may be made to the Minister.

(3) If no objection to the proposals is made to the Minister within the time and in the manner stated in the notice, or if all objections so made are withdrawn, the Minister may, if he thinks fit, confirm the proposals, either with or without modification, but in any other case he shall, before confirming them, afford to any person making an objection an opportunity of appearing before and being heard by a person appointed for the purpose by the Minister or, if it appears to the Minister that the matters to which the objection relates are such as to require investigation by public local inquiry, cause a public local inquiry to be held, and shall consider any objection not withdrawn and the report of the person before whom the objector appeared or of the person holding the inquiry, as the case may be, and may then confirm the proposals, either with or without modification.

(4) Subsections (2) to (5) of section two hundred and ninety of the Local Government Act, 1933 (which relate to the summoning of witnesses, the production of documents and costs in the case of local inquiries held under that section), shall apply to an inquiry held under this section as they apply to inquiries held under that section but with the substitution for references therein to a department of references to the Minister. 23 & 24 Geo. 5.
c. 51.

6.—(1) No ordinary or special removal of any licence shall be authorised to any premises in a licensing planning area. Removals in
licensing
planning
areas.

(2) Where proposals of a licensing planning committee, as confirmed under this Act by the Minister, provide for a planning removal, then, if an application is made by the holder of the licence to the licensing justices for the licensing district in which the premises to which the removal is intended to be made are situated, the justices shall authorise the removal of the licence to those premises if they are satisfied that—

- (a) the premises are fit and convenient for the purpose ; and
- (b) the applicant is a fit and proper person to be the holder of a licence ; and
- (c) any conditions specified in the proposals as confirmed as aforesaid have been complied with.

(3) Where the premises to which the removal of an on-licence is intended to be made are about to be constructed or are in course of construction, the holder of the licence may apply to the said justices for the provisional grant of authority for the removal to those premises, and the justices, if satisfied with the plans submitted to them and that if the premises had actually been constructed in accordance with those plans they would, on application, have granted their authority for the removal, may make a provisional grant accordingly :

Provided that the grant shall not be of any effect until it has been declared to be final by an order of the justices made after such notice has been given as may be required by them, and the declaration shall be made if they are satisfied that the premises have been completed in accordance with the plans and are also satisfied that the applicant is a fit and proper person to be the holder of a licence and that any conditions specified in the proposals as confirmed as aforesaid have been complied with.

(4) Anything authorised by the preceding provisions of this section to be done to or by licensing justices may be done to or by the licensing justices at a general annual licensing meeting, at transfer sessions or at a meeting of the licensing justices specially called for the purpose.

10 Edw. 7 &
1 Geo. 5.
c. 24.

(5) The provisions of sections twenty-nine to thirty-two of the Licensing (Consolidation) Act, 1910, as to appeal from the refusal of licensing justices to grant a special removal of a licence shall, with the necessary modifications, have effect in relation to the refusal, under this section, of licensing justices to authorise the removal of a licence, whether provisionally or otherwise, or to declare a provisional grant of authority to be final.

New licences
in licensing
planning
areas.

7.—(1) No new licence shall be granted in respect of any premises in a licensing planning area unless the licensing justices are satisfied that the licensing planning committee have no objection to the grant thereof.

(2) The grant of a new licence in respect of any premises in a licensing planning area shall not require confirmation by the confirming authority, and section thirty-three of the Licensing (Consolidation) Act, 1910 (which relates to the provisional grant and confirmation of licences to new premises), shall, in relation to an application in respect of any such premises as aforesaid, have effect as if references therein to the confirming authority, the confirmation of a licence and an order of confirmation were omitted.

(3) Nothing in this section shall apply to the re-grant of a licence granted for a term under subsection (2) of section fourteen of the Licensing (Consolidation) Act, 1910.

Surrender of
licences in
licensing
planning
areas and
suspension of
provisions as
to compensa-
tion fund.

8.—(1) Where proposals of a licensing planning committee, as confirmed under this Act by the Minister, provide for the surrender of a licence in respect of premises in their area, then, if such conditions as may be specified in those proposals as so confirmed have been complied with, the licence shall, by virtue of this Act, be extinguished as from such date as may be specified in those proposals as so confirmed or such later date as the licensing planning committee may allow.

(2) The renewal of an old on-licence in respect of premises in a licensing planning area shall not be refused on any ground other than those specified in the Second Part of the Second

Schedule to the Licensing (Consolidation) Act, 1910, and accordingly the question of the renewal of any such old on-licence shall not be referred to the compensation authority, no sum shall be paid out of the compensation fund under section forty-seven of the Housing Act, 1936, or section fifteen of the Town and Country Planning Act, 1944, in the event of the surrender of any such old on-licence, and paragraph 10 of Part I of the Sixth Schedule to the Finance Act, 1942 (which provides for the extinguishment, on payment of compensation, of an old on-licence in suspense), shall not apply to any old on-licence in respect of premises in a licensing planning area :

26 Geo. 5 &
1 Edw. 8.
c. 51.
7 & 8 Geo. 6.
c. 47.
5 & 6 Geo. 6.
c. 21.

Provided that where the licensing justices have decided to refer to the compensation authority the question of the renewal or extinguishment of a licence and, at the time of the decision, the premises in question were not in a licensing planning area, the like proceedings may be had by virtue of that decision as might have been had if the premises had continued not to be in a licensing planning area.

(3) No charge shall be imposed under section twenty-one of the Licensing (Consolidation) Act, 1910 (which relates to the compensation levy), in respect of an old on-licence renewed in respect of premises in a licensing planning area, and no charge imposed under the said section shall be levied in respect of premises which, at the date when the charge would, apart from this provision, fall to be levied, are in a licensing planning area, notwithstanding that, when the charge was imposed, they were not in such an area.

9.—(1) A licensing planning committee may, on the application of the holder of a licence in respect of premises in the licensing planning area for which the committee act, certify, in the prescribed form, that, for such period as may be specified in the certificate, the committee have no objection to the business of the applicant being carried on in such temporary premises in the area as may be so specified.

Temporary
premises.

(2) Where such a certificate is given, then, subject to the provisions of this section,—

- (a) an application may be made to licensing justices for the removal of the licence to the temporary premises so specified; and
- (b) a subsequent application may be made to licensing justices for the removal of the licence from those premises to premises on the site of the premises to which the licence related before the removal to the temporary premises,

in all respects as if those removals (hereafter in this section referred to as "temporary premises removals") were planning removals for which proposals of the licensing planning committee had been

duly confirmed under this Act by the Minister, and the provisions of this Act relating to the effect of the confirmation of proposals for planning removals (including the provisions as to appeal from the refusal of licensing justices to authorise removals) shall apply accordingly :

Provided that where, before the certificate is given, proposals for the planning removal of the licence have been confirmed under this Act by the Minister, but the licence has not been removed, paragraph (b) of this subsection shall have effect as if for the reference to premises on the site of the premises to which the licence related before the removal to the temporary premises there were substituted a reference to the premises to which the licence is to be removed in pursuance of the planning removal.

(3) Where a licence is removed to temporary premises by virtue of a temporary premises removal, the licence shall, at the expiration of the period specified in the certificate of the licensing planning committee, or such longer period, if any, as the licensing planning committee may allow, become void unless it has previously been removed to other premises.

(4) Where a certificate is given under subsection (1) of this section, section thirty-seven or, as the case may be, section thirty-eight of the Licensing (Consolidation) Act, 1910 (which relate to the qualification of premises for receiving justices' licences) shall not, in relation to the licence in question, apply to the temporary premises specified in the certificate, but nothing in this subsection shall be construed as requiring justices to allow a removal to, or to renew a licence in respect of, any premises which in their opinion are not proper to be used, for the period specified in the certificate, or, as the case may be, for the further period allowed by the committee, for the purposes of the business of the holder of the licence.

(5) Nothing in this section shall be construed as limiting the powers conferred by this Act as to the granting of planning removals, and, in the provisions of this Act conferring those powers and in the preceding provisions of this section, references to removals include references to removals to or from temporary premises from or to other premises on the same site, and references to removals in any other enactment relating to licensing shall be construed accordingly.

(6) In this section, the expression "temporary premises" includes all premises, whether temporary in their nature or not, which are not intended to be used permanently for the purposes of the business in question.

London.

10.—(1) The whole of the administrative county of London, except the City of London, shall be deemed to be such an area as is mentioned in section one of this Act and the Secretary of State may, after such consultations, if any, as he thinks fit, declare it to be a licensing planning area, and, subject to the provisions

of this section, the remaining provisions of this Act shall have effect accordingly.

(2) Subsections (1), (2) and (6) of section two of this Act shall not apply to any licensing planning area which consists of or includes the administrative County of London, except the City of London, and—

(a) the licensing planning committee for any such licensing planning area shall consist of—

(i) an independent chairman appointed by the Secretary of State ;

(ii) twelve members appointed from amongst their number by the Court of Quarter Sessions for the County of London ; and

(iii) twelve members appointed by the London County Council ; and

(b) the clerk of the peace of the County of London shall, by virtue of his office, be the secretary of the committee, and the committee may pay to him such remuneration as may be approved by the Secretary of State.

(3) The Secretary of State may by order—

(a) provide for the appointment of sub-committees of the licensing planning committee for a licensing planning area which consists of or includes the administrative County of London, except the City of London ;

(b) authorise or require the reference by the committee to those sub-committees of such matters as may be specified in the order ; and

(c) provide for the addition to those sub-committees, for the purpose of considering and reporting on such matters as may be specified in the order, of persons nominated by such authorities or bodies concerned with the area or any part thereof as may be so specified ;

and any such order may be revoked or varied by a subsequent order of the Secretary of State.

(4) The licensing planning committee for any such licensing planning area as aforesaid may, in such circumstances as may be approved by the Secretary of State, defray expenses incurred in travelling by members of any sub-committee of the committee.

(5) Any expenses incurred by the Common Council of the City of London under or by virtue of this Act shall be defrayed out of the general rate.

11. The Secretary of State may make regulations—

Regulations.

(a) with respect to the procedure to be followed, and the fees to be paid, on and in connection with applications under this Act to licensing justices ;

- (b) with respect to the procedure (including quorum) of licensing planning committees and of any such sub-committees of a licensing planning committee as are appointed by virtue of an order under the last preceding section ;
- (c) for fixing the time within which and the manner in which objections to proposals of licensing planning committees may be made to the Minister ;
- (d) with respect to the keeping and auditing of accounts of the expenditure of licensing planning committees and the furnishing by those committees to the authorities by whom the expenses of the committees fall to be defrayed of statements of the expenses estimated by the committees to be likely to be incurred by them in connection with their business ; and
- (e) for prescribing anything which by this Act is required or authorised to be prescribed ;

and in this Act the expression " prescribed " means prescribed by regulations made by the Secretary of State under this section.

Disqualifica-
tion of justices.

12. A person shall not, by reason of his membership of, or anything done by him in the course of his duties as a member of, a licensing planning committee or a sub-committee thereof, be held to be disqualified for acting as a licensing justice in relation to any matter falling to be decided by the licensing justices for the licensing planning area or any part thereof, whether under this Act or otherwise.

Definition of
" local
planning
authority."

13.—(1) In this Act the expression " local planning authority " means such a council as is mentioned in subsection (1) of section two of the Town and Country Planning Act, 1932.

22 & 23 Geo. 5.
c. 48.

(2) Where there is in force an agreement made under subsection (2) of section two of the Town and Country Planning Act, 1932, or under any corresponding enactment repealed by that Act, for relinquishing in favour of the council of a county any of the powers and duties under that Act or section one of the Town and Country Planning Act, 1944, of the council of a county district, then, for the purposes of section one and of subsections (1) and (2) of section two of this Act—

(a) the council of the county shall be deemed to be a local planning authority ; and

(b) if the council of the county district have relinquished all their powers under the said enactments, they shall be deemed not to be a local planning authority.

(3) For the purposes of section one and of subsections (1) and (2) of section two of this Act, a joint committee appointed under section three or four of the Town and Country Planning Act, 1932, or under a repealed enactment relating to town planning shall be deemed to be a local planning authority.

14.—(1) In this Act, the expression “the Minister” means Interpretation, the Minister of Town and Country Planning, the expression “war damage” has the meaning assigned to it by section two of the War Damage Act, 1943, the expression “licence” means a 6 & 7 Geo. 6. justices’ licence and includes such a licence which is in suspense c. 21. by virtue of section ten of the Finance Act, 1942, and other expressions which are used in the Licensing (Consolidation) Act, 1910, have the same meanings as in that Act.

(2) Save as otherwise expressly provided, the provisions of this Act are without prejudice to the provisions of any other Act with respect to licensing and licensed premises, and in particular, and without prejudice to the generality of the foregoing words, nothing in this Act shall, save as aforesaid, be construed as prejudicing the exercise as respects licensed premises of any of the powers of any authority under the enactments relating to town and country planning with respect to the acquisition of land or the control of use of land.

15. This Act shall continue in force until the expiration of five Duration years from the date on which the Emergency Powers (Defence) of Act. Act, 1939, ceases to be in force, and shall then expire : 2 & 3 Geo. 6. c. 62.

Provided that on the expiration of this Act, subsection (2) of section thirty-eight of the Interpretation Act, 1889 (which relates 52 & 53 Vict. to the effect of repeals), shall have effect as if this Act had then c. 63. been repealed by another Act.

16.—(1) This Act may be cited as the Licensing Planning Short title (Temporary Provisions) Act, 1945. and extent.

(2) This Act shall not extend to Scotland or Northern Ireland.

CHAPTER 16.

An Act to provide for suspending the operation of certain statutes of limitation in relation to proceedings affecting persons who have been enemies or have been detained in enemy territory. [28th March 1945.]

BE it enacted by the King’s most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) If at any time before the expiration of the period Suspension of prescribed by any statute of limitation for the bringing of any limitation action any person who would have been a necessary party to that period where action if it had then been brought was an enemy or was detained party was an in enemy territory, the said period shall be deemed not to have enemy or been run while the said person was an enemy or was so detained, and enemy shall in no case expire before the end of twelve months from the territory.